

CONSTITUTION AND BYLAWS OF FARD COMMUNITY BASED ORGANIZATION (CBO)

ARTICLE 1: NAME AND AREA OF OPERATION

1.1 Name: The name of the organization shall be **FARD Community Based Organization**, hereinafter referred to as "the Organization" or "FARD".

1.2 Area of Operation: The Organization shall operate within the boundaries of Kakamega County, Kenya, with its administrative and coordination hub based in [Insert Specific Sub-County/Ward/Town].

1.3 Nature of Organization: FARD is a non-political, non-sectarian, and non-profit collaborative CBO, established as a joint initiative and mediating platform between Delstarford Works (DSW) and Farmerman System (FS).

ARTICLE 2: VISION, MISSION, AND OBJECTIVES

2.1 Vision:

To foster a thriving, resilient ecosystem for agripreneurs in Kakamega County through agricultural intelligence, smart farming technologies, and sustainable agroecology.

2.2 Mission:

To act as an operational and strategic bridge that empowers rural communities by transitioning smallholder farmers from subsistence farming to profitable agribusinesses, leveraging data-driven market linkages and STEAM inclusion.

2.3 Core Objectives & Strategic Pillars:

The Organization is established to pursue the following core objectives:

- 1. Agriculture, Agroecology, and Agribusiness:** To promote sustainable farming practices that protect Kakamega's ecosystem (including the Kakamega Forest) while maximizing crop yields and commercial viability for local farmers.
- 2. Data-Driven Market Linkage:** To develop an efficient supply chain by connecting farmer data directly to market demand, eliminating exploitative middlemen, and ensuring fair pricing for local produce (e.g., maize, dairy, poultry, horticulture).
- 3. Agriculture Market Intelligence:** To provide farmers and agricultural cooperatives with actionable insights, pricing trends, and weather data to facilitate informed planting and



selling decisions.

4. **Precision & Smart Agriculture:** To introduce and promote modern, technology-driven farming techniques that optimize inputs (water, fertilizer, seeds) and maximize outputs, thereby increasing climate resilience.
5. **Community Development & STEAM Inclusion:** To prioritize the socioeconomic empowerment of women, girls, and children by integrating STEAM (Science, Technology, Engineering, Arts, and Mathematics) education from primary to tertiary levels, building a new generation of tech-savvy agripreneurs.

ARTICLE 3: MEMBERSHIP AND ELIGIBILITY

3.1 Membership Categories:

Given FARD's Business-to-Business (B2B) operational model, membership shall consist of:

1. **Founding Members:** Representatives of the founding entities, Delstarford Works (DSW) and Farmerman System (FS).
2. **Institutional/Group Members:** Agricultural cooperatives, SACCOs, and existing community groups that align with FARD's vision.
3. **Ordinary Members:** Individual agripreneurs, community mobilizers, and farmers operating within Kakamega County.

(Note: A minimum of 10 individual human members is required to maintain CBO registration with the Directorate of Social Development).

3.2 Eligibility: Membership is open to any individual or group in Kakamega County aged 18 years and above who is dedicated to agribusiness, agroecology, and community development, Artificial Intelligence and agrees to abide by this constitution.

3.3 Registration and Subscription Fees:

1. Every new member (individual or institutional) shall pay a non-refundable registration fee of KSh [Insert Amount].
2. Members shall pay an annual/monthly subscription fee of KSh [Insert Amount] as determined by the Management Committee.

3.4 Termination of Membership:

Membership may be terminated through:

1. Voluntary resignation via a written notice to the Secretary.
2. Expulsion by a two-thirds (2/3) majority vote of the Management Committee due to misconduct, actions contrary to FARD's objectives, or failure to pay subscriptions for [Insert Number] consecutive months.
3. Death of an individual member or dissolution of an institutional member.

ARTICLE 4: LEADERSHIP AND GOVERNANCE

4.1 The Management Committee:



The day-to-day affairs of FARD shall be managed by a Management Committee consisting of the following democratically elected officials:

1. Chairperson
2. Vice-Chairperson
3. Secretary
4. Treasurer
5. Organizing Secretary / Community Mobilizer
6. *Optional: Up to [Insert Number] Committee Members representing DSW, FS, and local cooperatives.*

4.2 Roles of Key Officials:

- **Chairperson:** Shall preside over all meetings, represent the CBO in official capacities, and provide strategic leadership to ensure the implementation of the DSW and FS joint initiative.
- **Secretary:** Shall deal with all CBO correspondence, keep all records (including minutes), maintain the register of members, and manage the physical/digital administrative hub.
- **Treasurer:** Shall receive, disburse, and account for all CBO funds, maintain accurate financial records, and present financial reports at meetings.

4.3 Term of Office:

Officials shall hold office for a term of [e.g., Two (2)] years and shall be eligible for re-election for a maximum of [e.g., Two (2)] consecutive terms.

ARTICLE 5: MEETINGS

5.1 Annual General Meeting (AGM):

1. An AGM shall be held once every year, not later than 1ST of June .
2. The agenda shall include the presentation of the Chairperson's annual report, the Treasurer's audited financial report, and the election of new office bearers (if their term has expired).
3. A notice of at least 14 days shall be given to members prior to the AGM.

5.2 Regular / Committee Meetings:

The Management Committee shall meet at least once every [e.g., month/quarter] to review operations, market/stakeholder research, and project implementation phases.

5.3 Quorum:

The quorum for Management Committee meetings shall be [e.g., 50% + 1] of the committee members. The quorum for the AGM shall be two-thirds (2/3) of the fully registered members.



ARTICLE 6: FINANCIAL MANAGEMENT

6.1 Source of Funds:

FARD shall act as the non-profit/community funding vehicle managing grants and project-specific funds. Funds shall be derived from:

1. Member registration and subscription fees.
2. Grants, donations, and funding from NGOs, County Governments, and strategic partners (e.g., GIZ, KALRO).
3. Income generated from authorized CBO activities and B2B linkages.

6.2 Financial Structure & Allowances:

As per the strategic framework:

1. **FARD (The CBO):** Funds will be utilized for operational stipends, travel, accommodation, and mobilization logistics for community impact. FARD shall not distribute profits as dividends.
2. **Founding Entities (DSW & FS):** Long-term organizational growth, capacity building, and professional salaries shall be managed internally by DSW and FS through their respective structured agreements, separate from the CBO's grassroots operational funds.

6.3 Bank Accounts and Signatories:

1. The CBO shall open and maintain a bank account in a recognized commercial bank in Kenya.
2. The mandatory signatories to the bank account shall be the **Chairperson, Secretary, and Treasurer.**
3. Any withdrawal of funds requires the signature of the Treasurer and at least one other signatory (Chairperson or Secretary).

6.4 Auditing and Financial Year:

1. The financial year of the CBO shall run from [e.g., 1st January to 31st December].
2. The Management Committee shall ensure proper books of accounts are kept and made available for inspection by the Sub-County Social Development Officer upon request.

ARTICLE 7: AMENDMENTS TO THE CONSTITUTION

Any amendment to this constitution must be proposed in writing and approved by a two-thirds (2/3) majority vote of fully paid-up members present at an Annual General Meeting or a Special General Meeting convened for that purpose. Approved amendments must be submitted to the local Social Development Office.

ARTICLE 8: DISSOLUTION

1. The CBO may be dissolved if at least three-quarters (3/4) of the registered members vote for dissolution at a specially convened meeting.



2. Upon dissolution, and after clearing all debts and liabilities, any remaining assets shall not be distributed among members but shall be transferred to another CBO, NGO, or charity with similar objectives within Kakamega County, as approved by the Sub-County Social Development Officer.

ADOPTION OF THE CONSTITUTION

We, the undersigned, being the elected executive officials of **FARD Community Based Organization**, hereby declare that this Constitution was adopted by the members at a general meeting held on (Date) at (Location), Kakamega County.

1. CHAIRPERSON

Name: Mhlen gi A sobani

ID No: GNS413560

Signature: [Signature] Date: 18/05/26

2. SECRETARY

Name: _____

ID No: _____

Signature: _____ Date: _____

3. TREASURER

Name: _____

ID No: _____

Signature: _____ Date: _____

